

substantial factor in bringing about the death. (*Bromme v. Pavitt* (1992) 5 Cal. App. 4th 1487, 1497.) “The actor’s negligent conduct is not a substantial factor in bringing about harm to another if the harm would have been sustained even if the actor had not been negligent.” (*Id* at 1498.)

As noted above, this motion is based entirely on Plaintiffs’ admissions by failure to respond to Request for Admissions. Both Plaintiffs have admitted to the following:

- Plaintiffs sustained no damage as a result of the incident;
- Plaintiffs lack standing to bring the claims alleged in the Complaint;
- Decedent was negligent at the time of the incident;
- Decedent’s negligence contributed to the incident;
- Decedent is comparatively at fault for the incident;
- Plaintiffs did not receive economic or financial support from Decedent;
- Plaintiffs do not have any evidence to support their theory that County or Nathan Morgan are at fault for the incident;
- Defendants did not cause or contribute to the incident;
- Decedent caused the incident;
- Decedent had a history of drug use prior to the incident;
- Plaintiffs obtained custody of Decedent’s children due to Decedent’s drug use. (SUMF Nos. 11 – 53.)

Given the above admissions, Defendants have met their initial burden on summary judgment. Plaintiff Benigna Salazar’s Opposition does not include any evidence that creates triable issues of material fact. Plaintiff Oscar Salazar has not filed any Opposition to the motion and, as a result, has not demonstrated any triable issue of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503641	WISE VS DC LOGISTICS	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS

Tentative Ruling: The Court DENIES the Motion to be Relieved as Counsel for DC Logistics. Rule 3.1362 of the California Rules of Court specify the requirements for Motions to be Relieved as Counsel. That rule provides, in part: “The notice of motion and motion, the declaration, and the proposed order **must be served on the client** and on all other parties who have appeared in the case.” (emphasis added.) Here, the proofs of service attached to the Notice of Motion and Declaration in Support of Attorney’s Motion to be Relieved as Counsel, both filed June 12, 2026, reflect that the only persons served were the attorneys for plaintiff. The Proof of Service for the Proposed Order, filed June 26, 2026, reflects the same.